



SOCIETIES REGISTRATION (SECOND AMENDMENT) ORDINANCE, 2005

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Contents

	PREAMBLE
1	SHORT TITLE AND COMMENCEMENT
2	ADDITION OF NEW SECTION, ACT XXI OF 1860
3	ADDITION OF NEW SECTION, ACT XXI OF 1860

SOCIETIES REGISTRATION (SECOND AMENDMENT) ORDINANCE, 2005.

ORDINANCE NO. XIX OF 2005

An Ordinance further to amend the Societies Registration Act, 1860

WHEREAS it is expedient further to amend the Societies Registration Act, 1860 (XI of 1860), for the purposes hereinafter appearing;

AND WHEREAS the Provincial Assembly of the Punjab is not in session and the Governor of the Punjab is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, exercise of the powers conferred by Article 128 of the Constitution of the Islamic Republic of Pakistan the Governor of the Punjab is pleased to make and promulgate the following Ordinance:-

1. Short title and commencement.-(1) This Ordinance may be called the Societies Registration (Second Amendment) Ordinance, 2005.

(2) It shall come into force at once.

2. Addition of new section, Act XXI of 1860. In the Societies Registration Act, 1860 (XXI of 1860), after section 20, the following new section 21 shall be inserted, namely:-

"21. Registration of Deeni Madrassah.-(1) A Deeni Madrassah by whatsoever name called shall not operated without getting themselves registered as under, namely:—

- (i) The Deeni Madaris existing before the commencement of the Societies Registration (Second Amendment) Ordinance, 2005, if not already registered, shall get themselves registered under this Act upto the 31st December, 2005; and
- (ii) The Deeni Madaris which are established after the commencement of the Societies Registration (Second Amendment) Ordinance, 2005, shall get themselves registered within one year of their establishment.

Explanation.—One Deeni Madrassah having more than one campus shall need only one registration.

(2) Every Deeni Madrassah shall submit annual report of its educational activities and performance to the Registrar;

(3) Every Deeni Madrassah shall cause to be carried out audit of its accounts by an Auditor and submit a copy of its audit report to the Registrar.

(4) No Deeni Madrassah shall teach or publish any literature which promotes militancy or spreads sectarianism or religious hatred.

Provide that nothing contained herein shall bar the comparative study of various religions or schools of thought or the study of any other subject covered by the Holy Quran, Sunnah or the Islamic jurisprudence.

Explanation.-In this section, "Deeni Madrassah" means a religious institution primarily for religious education and includes Jamia, Dar-ul-Uloom, School, College or University, or called by any other name, set-up for purpose of primarily imparting religious education and providing boarding and lodging facilities".

3. Addition of new section, Act XXI of 1860.After section 21 substituted as a aforesaid, the following new section shall be added, namely:—

“22. Repeal. The Societies Registration (Amendment) Ordinance, 2005 (XII of 2005) is hereby repealed”.
